

SENATE No. 3187

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Pilgrim Memorial Park in Plymouth.

PETITION OF:

NAME:

Dylan A. Fernandes

DISTRICT/ADDRESS:

Plymouth and Barnstable

SENATE No. 3187

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 3187) (subject to Joint Rule 12) of Dylan A. Fernandes for legislation relative to the leasing of the Pilgrim Memorial Park in Plymouth. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Pilgrim Memorial Park in Plymouth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The commissioner of capital asset management and maintenance, in consultation with the
2 commissioner of conservation and recreation, may enter into a 99-year lease with the Town of
3 Plymouth, for the fields and facilities, together with the land and appurtenances of the Pilgrim
4 Memorial Park which is located at 79 Water Street, Plymouth. The 99-year lease may provide for
5 improvements to the field and facilities, together with the land and appurtenances. The 99-year
6 lease executed under this section shall be on terms, conditions and consideration acceptable to
7 the commissioner of capital asset management and maintenance, in consultation with the
8 commissioner of conservation and recreation; provided, however, that the 99-year lease shall
9 provide that: (i) the Town of Plymouth shall provide general oversight for land, facilities, fields
10 and appurtenances associated therewith during the term of the 99-year lease; (ii) the Town of
11 Plymouth shall carry comprehensive general liability insurance naming the commonwealth as a
12 co-insured, protecting the commonwealth against all claims for personal injury or property
13 damage arising from or on land and appurtenances associated therewith during the term of the

14 lease; (iii) the Pilgrim Memorial Park shall be accessible to the general public when not in use by
15 permittees; (iv) the Town of Plymouth shall not design or construct any facilities on the parcel
16 without the written approval of the commissioner of capital asset management and maintenance
17 and the commissioner of conservation and recreation; (v) the Town of Plymouth shall be
18 responsible for all utility costs, subject to the 99-year lease, and for the general day-to-day
19 maintenance of the Pilgrim Memorial Park; and (vi) the Town of Plymouth shall have sole
20 responsibility for developing rules and regulations and fees for the use of Pilgrim Memorial
21 Park.